

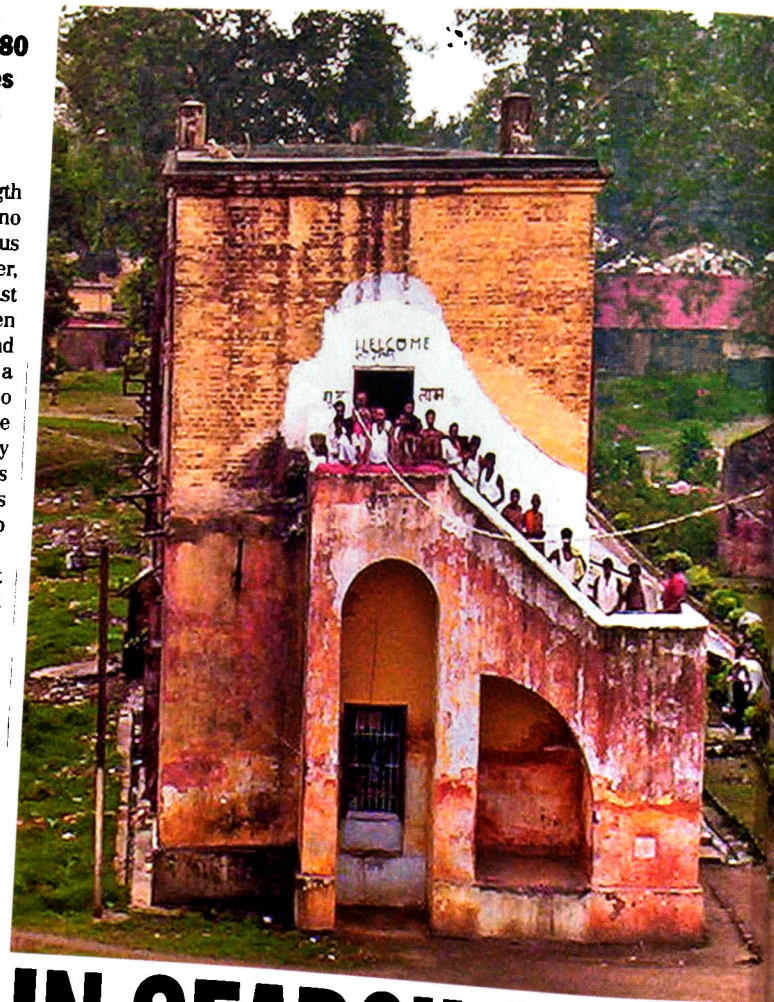
With no one willing to tighten the noose around their neck, 80 convicts facing death penalties await their turn at the gallows

■ By Amitabh Srivastava

It is a job that demands sheer strength and unusual bravery but no classroom education. No previous experience is required either. However, the candidate must be a male, at least 5 ft 4 inches tall, and willing to tighten the noose around the convict's neck and then pull the lever. That's all. Here's a job vacancy that doesn't come by too often—of a hangman in Bihar—and the state prison officials are desperately looking for one, inviting applications from across the country. Because locals have refused to step forward to take up the job "unconditionally".

According to state prison officials, at least two hangmen are required against one post that has been lying vacant since 1995 when Suresh Bahri was executed in Bhagalpur Central Jail, the only prison in Bihar and adjoining Jharkhand equipped with facilities for hanging a convict. Bahri had made his tryst with gallows for killing his wife and two children and then drinking whisky mixed with his children's blood. "One of the two hangmen would be a standby, which is required because the execution has to be done exactly at the very minute of the ordained hour," a Bhagalpur prison official says.

According to Sandip Paundrik, inspector-general (prisons), "About 80 prisoners have been awarded death sentence in Bihar, out of which 36 have been kept in Bhagalpur jail. However, their petition for clemency or other reasons are pending at various stages." And the situation has worsened because of the recent rise in capital punishment pronounced in the state through speedy trials by the fast-track courts set up by the Nitish Kumar Government. Since 2006, as many as 65 convicts have been awarded capital punishment, and the number is rising by the day. In 2007 alone, 39 convicts, including politicians, were awarded death sentence (subject to confirmation by the high court) by fast-track courts in the rarest of the rare cases. However, many of them have appealed against the sentencing and their pleas are



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pending before either the high court or the Supreme Court. According to lawyer Chitranjan Prasad Sinha, who had represented the state Government in the IAS officer G. Krishnaiyyah's murder case, "The spurt in death sentences is a welcome step because capital punishment always has an exemplary impact." In the Krishnaiyyah murder case, former JD(U) MP Anand Mohan and two other legislators were awarded capital punishment on October 3, 2007.

There are five more prisoners on death row in Bhagalpur jail whose sentence stands confirmed. But they are still pinning their hopes on the

clemency petitions submitted to the President, which may not yield any result as crimes committed by them falls in the rarest of the rare category. But one Prajit Kumar Singh, who was convicted for killing three innocent children of his landlord on April 18, 1998, obviously knows what living on the verge of death actually means. He was awarded capital punishment in 1998. But since then, Singh has been kept under "close observation" in a special enclosure near the gallows. Recently, he moved a sentence review petition in the Supreme Court which led to the postponement of his execution even